



National Insurance (Amendment) Act 1972

1972 CHAPTER 36

An Act to amend the provisions of the National Insurance Acts 1965 to 1971 relating to the earnings rule for retirement pensions and to make parallel provision for Northern Ireland. [29th June 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 30 of
1965 c. 51.

1.—(1) For section 30(7) of the National Insurance Act 1965 there shall be substituted—

“(7) Subject to any regulations under section 44(a) of this Act, where the earnings of a beneficiary who is less than five years over pensionable age have exceeded £9·50 for the calendar week ending last before any week for which he is entitled to a retirement pension, the weekly rate of his pension shall for the last-mentioned week be reduced—

- (a) where the excess is less than £4·00, by 5 new pence for each complete 10 new pence of the excess, and
- (b) where the excess is not less than £4·00, by 5 new pence for each complete 10 new pence of the excess up to £4·00 and by 5 new pence for each complete 5 new pence of any further excess:

Provided that this subsection shall not affect the rate of the pension for the first week after the date of the beneficiary's retirement.”

(2) Section 2(2) of the National Insurance Act 1971 is hereby repealed.

2.—(1) For section 29(7) of the National Insurance Act Amendment (Northern Ireland) 1966 there shall be substituted a subsection of section 29 in the terms of that set out in section 1(1) above, but with the words “section 44(a)” replaced by the words “section 43(a)”;^{of 1966 c. 6 (N.I.).} and Article 2(2) of the Social Services (Parity) Order (Northern Ireland) 1971 is hereby repealed.

(2) The Interpretation Act (Northern Ireland) 1954 shall apply for the purposes of the interpretation of this Act in its application to Northern Ireland as that Act applies for the purposes of the interpretation of an Act of the Parliament of Northern Ireland; and—

(a) in section 104 of the National Insurance Act 1965 (which provides for establishing a unified system of insurance in Great Britain and Northern Ireland) references to Northern Irish legislation shall be deemed to include this Act as it applies to Northern Ireland; and^{1965 c. 51.}

(b) this Act shall, in so far as it relates to matters in respect of which the Parliament of Northern Ireland has power to make laws, be deemed for the purposes of section 6 of the Government of Ireland Act 1920 to have been passed before the day referred to in that section as the appointed day.^{1920 c. 67.}

3.—(1) This Act may be cited as the National Insurance (Amendment) Act 1972.^{Short title, citation and commencement.}

(2) This Act as it applies to Great Britain may be cited with the National Insurance Acts 1965 to 1971 as the National Insurance Acts 1965 to 1972, and shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint.

(3) This Act as it applies to Northern Ireland may be cited with the National Insurance Acts (Northern Ireland) 1966 to 1971 as the National Insurance Acts (Northern Ireland) 1966 to 1972, and shall come into force on such day as the Secretary of State may by order appoint; and in relation to that order the expression “rule-making authority” in the Statutory Rules Act 1958 (Northern Ireland) 1958 shall include the Secretary of State (and the order shall be a statutory rule within the meaning of that Act accordingly).^{1958 c. 18 (N.I.).}